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File No.: EXP202210407

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On September 5, 2022, a complaint was filed with entry registration number REGAGE22e00038129440 before the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant submits a complaint for receiving commercial calls on their mobile line ***PHONE.1; the complainant states that the receiving line has been registered in the Robinson List for more than two months.

They claim that they requested removal through Customer Service (***PHONE.2), as established by the privacy policy of the complained entity, and they were informed that their request was registered. Along with the notification, the following is provided:

- List of dates and the ID of the calls for which exclusion was requested.
- Screenshots of the incoming call log showing the receipt of calls between 04/27/2022 and 06/21/2022 from the calling lines ***PHONE.3, ***PHONE.4, ***PHONE.5, ***PHONE.6, and ***PHONE.7.
- Invoices and a photograph of a router.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on October 10, 2022, as evidenced by the acknowledgment of receipt in the file.

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No response has been received to this document.

THIRD: On December 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

RESULT OF THE INVESTIGATIVE ACTIONS

As a result of the investigations carried out, the following information has been obtained:

- Through information obtained from the numbering registry on the website of the "Association of Operators for Portability," www.portanet.net, it is verified that, as of the investigation date of this file, the operators of the originating numbers of the calls were:

***PHONE.2

VODAFONE ESPAÑA

***PHONE.3 LEAST COST ROUTING TELECOM

***PHONE.5 VODAFONE ESPAÑA UNIPERSONAL

***PHONE.6 LEAST COST ROUTING TELECOM

Among other claimed numbers and based on the complainant's call log, the following information is available:

***PHONE.4

unanswered or blocked

***PHONE.7

no calls appear in the call log

Regarding the claimed number ***PHONE.2:

- From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

VODAFONE ESPAÑA UNIPERSONAL

Vodafone indicates that this phone belonged to their satisfaction survey department and that the claimed calls were not made.

TELEFÓNICA, which was the operator of the complainant's phone, indicated that there are no records of the calls.

Regarding the claimed number ***PHONE.3:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM, S.L -> STG GROUP (Peru)

TELEFÓNICA confirms the call made on 16-06-2022 but not the one on 31-05-2022.

LEAST COST ROUTING indicates that on May 31, the line was not assigned to any company and that from June 7 it belonged to STG GROUP (Peru).

A request was sent by international certified mail to STG GROUP, asking for the reason for the calls, to which no response has been received.

In reference to the claimed number ***TELÉFONO.5:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

VODAFONE ESPAÑA UNIPERSONAL

Vodafone indicates that this phone belonged to its commercial department for businesses and self-employed individuals and that the claimed calls were not made.

TELEFÓNICA, which was the operator of the claimant's phone, indicated that there are no records of the calls.

In reference to the claimed number ***TELÉFONO.6:

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From the response to the requests made, it is concluded that the ownership flow of the telephone line was:

LEAST COST ROUTING TELECOM, S.L

TELEFÓNICA indicates that there are no records of the calls.

LEAST COST ROUTING indicates that on the requested days, the line was not assigned to any company, was not activated, and also states that they have no recorded calls.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these

investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final provision sixth of the LGTel (entry into force)

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the 'Official State Gazette.' Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to oppose receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

Through the investigations carried out by this Agency, it has been determined that the calls made from the numbers:

***TELÉFONO.2 and ***TELÉFONO.5 belong to the surveys and satisfaction department and the commercial department for businesses and self-employed individuals, respectively, of the operator VODAFONE, but there are no records of calls from any of the operators, thus the reason for the calls could not be determined.

***TELÉFONO.6 belongs to LEAST COST ROUTING, which reports that on the dates indicated in the complaint, the line was not assigned to any customer. Therefore, the making of the call cannot be attributed.

***TELÉFONO.3 belongs to STG GROUP, a company located in Peru; we do not have any record that STG GROUP currently has legal representatives in Spain. It should be noted that the LGT does not confer the Spanish Agency for Data Protection with competencies over a company located in Peru.

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Thus, as it has not been possible to attribute responsibility for the making of the calls to any of the investigated operators and in accordance with what has been stated by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U. and to the complaining party. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article

46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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